

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3134

By: West (Kevin)

AS INTRODUCED

An Act relating to higher education; creating the Keep Accreditation About Academics Act; defining terms; prohibiting accrediting agencies from utilizing any diversity, equity, and inclusion practices or procedures during the accreditation of an institution of higher education; requiring accrediting agencies to implement policies to prevent the use of diversity, equity, and inclusion during the accreditation process; authorizing enforcement through civil action by certain persons; authorizing enforcement by the Attorney General; finding violation of act a violation of the Oklahoma Anti-Discrimination Act and the Oklahoma Consumer Protection Act; requiring accrediting agency to pay attorney fees; requiring accrediting agency to pay civil penalties; providing for noncodification; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Keep Accreditation About Academics Act".

1 SECTION 2. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 3252 of Title 70, unless there
3 is created a duplication in numbering, reads as follows:

4 A. As used in this act:

5 1. "Accreditation" means the status of public recognition that
6 an accrediting agency grants to an educational institution, program,
7 or both that meets the agency's standards and requirements;

8 2. "Accrediting agency" means a person or governmental entity
9 that conducts accrediting activities and makes decisions concerning
10 the accreditation or pre-accreditation status of institutions,
11 programs, or both. Accrediting agency includes, but is not limited
12 to, any national, regional, or programmatic accrediting agency;

13 3. "Diversity, equity, and inclusion" means any differential
14 treatment of, or assignment of any fault or blame to, an individual
15 or group at an institution of higher education based on race, color,
16 ethnicity, national origin except as it relates to immigration
17 status under United States law, sex except as it relates to sex-
18 segregated facilities such as dormitories, bathrooms, or athletic
19 programs, sexual orientation, or gender identity;

20 4. "Diversity, equity, and inclusion practice or procedure"
21 means any initiative, policy, program, mandate, requirement,
22 standard, metric, statistic, or other practice or procedure related
23 to diversity, equity, and inclusion; and
24

1 5. "Institution of higher education" means a state educational
2 institution within The Oklahoma State System of Higher Education
3 including all of the state educational institution's programs,
4 departments, divisions, offices, centers, colleges, and schools and
5 any person acting on behalf of any of the state educational
6 institution's programs, departments, divisions, offices, centers,
7 colleges, and schools.

8 B. When taking any action on the accreditation or renewal of
9 accreditation of an institution of higher education, an accrediting
10 agency shall not:

11 1. Base its accrediting decision in any way on a review or
12 consideration of any diversity, equity, and inclusion practice or
13 procedure;

14 2. Collect information related to any diversity, equity, and
15 inclusion practice or procedure; or

16 3. Include any requirement related to any diversity, equity,
17 and inclusion practice or procedure.

18 C. An accrediting agency considering the accreditation or
19 renewal of accreditation of an institution of higher education shall
20 implement policies to ensure that any person with decision-making or
21 recommendation authority related to that accreditation or renewal of
22 accreditation does not collect and is not presented with any
23 information regarding any diversity, equity, and inclusion practice
24 or procedure.

1 D. This section may be enforced through a civil action brought
2 against an accrediting agency by any person who is or was:

3 1. A student of an institution of higher education; or

4 2. Employed by an institution of higher education.

5 E. The Attorney General may enforce this section against an
6 accrediting agency. Any violation of this section shall constitute
7 a violation of the Oklahoma Anti-Discrimination Act and the Attorney
8 General's Office of Civil Rights Enforcement may investigate and
9 seek remedies as provided by law. Any violation of this section
10 shall also constitute an unfair act in violation of the Oklahoma
11 Consumer Protection Act and the Attorney General may investigate and
12 seek remedies as provided by law.

13 F. In addition to any other remedies available by law, an
14 accrediting agency that violates this section shall be obligated to
15 pay the reasonable attorney fees and costs of the party bringing the
16 lawsuit and to pay damages to the party bringing the lawsuit in an
17 amount equal to three (3) times all monies paid to the accrediting
18 agency by the institution of higher education for the accrediting
19 agency's services, whether dues, fees, or otherwise.

20 G. In addition to any other remedies available by law, an
21 accrediting agency that violates this section shall be liable to pay
22 civil penalties to the party bringing the lawsuit in an amount up to
23 One Thousand Dollars (\$1,000.00) per student that attended the
24

1 institution of higher education at the time the accrediting agency
2 violated this section.

3 SECTION 3. This act shall become effective November 1, 2026.

4

5 60-2-13977 AQH 11/12/25

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24